

Sandeep Kaur Virk v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 11 October 2023 · 2023:AHC:195876-DB · WRIT - C No. 30650 of 2023 · **Writ disposed; consider connection after dues cleared**

HEADNOTE

New connection sought by mandamus. The licensee produced the Executive Engineer's letter of 15.09.2023 showing Rs.1,55,175 outstanding against the premises and invoked Clause 4.3(f)(viii) of the U.P. Electricity Supply Code, 2005, under which the application is processed only after dues are cleared. The writ was disposed of with a direction to consider the application forthwith once those dues are deposited.

FACTUAL SUMMARY

Sandeep Kaur Virk petitioned the Allahabad High Court for a mandamus that the distribution licensee release a new electricity connection. The licensee's counsel placed on record a letter dated 15 September 2023 from the Executive Engineer, Electricity Distribution Division, Rampur, which stated that Rs.1,55,175 was outstanding against the premises and that the application would be processed only after that sum was deposited.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)

New connection processed only after premises dues are cleared

HOLDING

On the licensee's statement of Clause 4.3(f)(viii), a new-connection application is processed only after outstanding dues against the premises are cleared. With Rs.1,55,175 shown as due, the writ for a mandamus to release the connection is disposed of on the direction that, once the petitioner deposits those dues, the electricity department shall consider the application forthwith. ¶ 3-5

PRINCIPLE TAGS

clause-4.3-new-connection-barred-by-outstanding-premises-dues

The Executive Engineer's letter recorded Rs.1,55,175 outstanding against the premises, and the Court disposed of the mandamus for a new connection on the footing that the application would be considered forthwith only after those dues were cleared. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS.1,55,175 WAS CORRECTLY RAISED OR RECOVERABLE FROM THE PETITIONER

The Court acted on the Executive Engineer's letter and did not examine the demand. ¶ 3-5

NOT DECIDED — WHETHER THE NEW CONNECTION MUST BE GRANTED ONCE THE DUES ARE DEPOSITED

The direction is only that the department consider the application forthwith. ¶ 5